

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

IAN MILLS, *Claimant*

v.

CROWLEY LOGISTICS, INC., *Respondent*.

DOCKET NO. 1995(F)

Served: April 24, 2024

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge*.

ORDER REGARDING COMPLETION OF THE EVIDENTIARY RECORD

Commission Rule 502.314 provides that the “administrative law judge may require the submission of additional affidavits, documents, or memoranda from complainant or respondent” in a Subpart T proceeding. 46 C.F.R. § 502.314. Therefore, as noted in the accompanying Order Partially Granting Crowley Logistics, Inc.’s Motion to Dismiss, both Claimant Ian Mills and Respondent Crowley Logistics, Inc. (“Crowley”) are ordered to supplement the evidentiary record as described herein.

Each party is ordered to supplement the record by responding to the questions that follow, repeating the questions and indicating the party’s response to each question within the same document. Where a question seeks production of documents, the parties are instructed to clearly note to which question each group of documents pertains. As far as practicable, the exhibits should be in one PDF document. The PDF should have unique, sequential page numbers (bates numbers), at the top or bottom of each page, for example using CX prefixes for Claimant and RX prefixes for Respondent and incrementing the number for each page (for example CX-1, CX-2, CX-3 etc.). A table of contents should also be provided by each party, describing each document provided, specifying the question to which each responds, and indicating the start and end bates number of each document. Where the parties are asked to respond to questions, the answers to those questions must be provided by an individual with personal knowledge of the matters described and verified in accordance with 46 C.F.R. § 502.6(c).

To Be Provided by Crowley:

- A. Provide the entirety of the investigation file pertaining to Mr. Mills’s clip-on generator, including but not limited to: any internal emails or other correspondence, documentation, summaries, business records, and conclusions.
- B. Describe all efforts made by Crowley to determine whether it received this clip-on generator, and the dates of such efforts.

- C. Provide all emails to/from Mr. Mills, or relating to Mr. Mill's shipment, dated from November 1, 2021 through December 31, 2021.
- D. Answer the following questions regarding the equipment interchange document with heading "Gold Coast Repairs" and dated 11/19, included as part of Mr. Mills's opposition to the motion to dismiss, July 18, 2023 ("Opposition"), Attachment 2, page 4:
1. The form was signed by driver #10148 – identify this individual, describe their relationship to Crowley, and describe their involvement with the shipment at issue in this proceeding.
 2. Was driver #10148 contacted as part of Crowley's investigation? If yes, describe the date of contact and all information provided by driver #10148. If driver #10148 was not contacted, explain why he was not contacted.
 3. What is the meaning of the indication on the form "TAXG – 594760 – (Gen Set) w/ Gen Set"? Does Crowley contend that this indication does not refer to a generator?
 4. Did Crowley take delivery of the items described on this interchange form? If not, who took delivery of these items?
 5. Explain where the items signed for by driver #10148, in this interchange form, were taken next, and under whose custody they were placed.
 6. Explain the process utilized by Crowley to track chain of custody of items, between the time of pickup by driver #10148 and the time of transportation by ocean.
 7. To whom does "Customer: Brandon" refer?
 8. Is the relevant supplier's name "My Shipping Containers" or "Gold Coast Repairs"? Please explain the role of each of these entities with respect to the generator, if known.
- E. Answer the following regarding Invoice #1714 (Opposition, Attachment 2, page 3):
1. Did Crowley receive Invoice #1714, on or about November 9, 2021, as stated in Opposition at 3 ("Along with the invoices for 98 items that were to be shipped, the Claimant provided the Respondent with the invoice for the generator on November 9, 2021")?
 2. Does Crowley agree that the bill of lading was created on November 24, 2021, as stated in Opposition at 3? If not, explain.
- F. As a matter of company policy, what processes did Crowley have in place, as of November 2021, to: confirm receipt of property picked up by Crowley or companies acting for Crowley; track the location of property, including placement in any warehouse or storage location; and track the ultimate disposition of property.
- G. Explain how the processes described in response to question F were followed (or not) with respect to the container, and generator, reflected on the equipment interchange document referenced in question D above.
- H. How did Crowley, or any entities acting for Crowley, document receipt of Mr. Mills's container, and any accompanying material, between pick up on November 19, 2021 and shipment of the container? Produce any such documentation, if not already included in the document productions required above.

To Be Provided by Mr. Mills:

- I. Provide the described video evidence of the Container arriving without the clip-on generator. Complaint at 3.
- J. Provide a statement from the supplier of the clip-on generator, in support of the assertion that “the President of the supplier (MyshippingContainers.com) also verbally confirmed to the Claimant that the generator was collected by the Respondent’s truck driver that day.” Complaint at 2. The statement must be verified in accordance with 46 C.F.R. § 502.6(c).
- K. Is the relevant supplier’s name “My Shipping Containers” or “Gold Coast Repairs”? Please explain the role of each of these entities with respect to the generator.
- L. Regarding the equipment interchange document with heading “Gold Coast Repairs” and dated 11/19 (Opposition, Attachment 2, page 4), to whom does “Customer: Brandon” refer?
- M. Regarding Invoice #1714 (Opposition, Attachment 2, page 3), provide email or other documentation showing that Crowley received Invoice #1714, on or about November 9, 2021, as stated in Opposition at 3 (“Along with the invoices for 98 items that were to be shipped, the Claimant provided the Respondent with the invoice for the generator on November 9, 2021”)?

The parties are **ORDERED** to provide the above responses, information, and documents as described on or before **May 24, 2024**. Each party may, at the same time, file any additional evidence or argument in support of its claims or defenses. On or before **June 7, 2024**, each party may also file a reply to the other party’s response.

ALEX
CHINTELLA

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Alex M. Chintella
Administrative Law Judge